

August 24, 2017



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16295
(SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain IBCs containing combustible liquids with a placard meeting the label specifications for size in § 172.407(c). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.519(c) in that each placard must measure at least 250 mm on each side, except as provided herein.
5. BASIS: This special permit is based on the application of Evonik Corporation dated December 7, 2016 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Combustible liquid, n.o.s.	Comb liq	NA1993	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a 275-gallon UN 31HA1 composite IBC certified to the Packing Group II performance level.

b. OPERATIONAL CONTROLS -

(1) IBCs covered under the terms of this special permit may only be transported under exclusive use in closed and sealed transport vehicles or closed and sealed freight containers.

(2) Each closed and sealed transport vehicle or closed and sealed freight container containing IBCs covered under the terms of this special permit be must marked on each side and each end in accordance with § 172.331(c) and placarded on each side and each end with the COMBUSTIBLE placard in accordance with subpart F of part 172.

(3) Transportation is only authorized:

(i) From the manufacturing plant to the distribution center; and

(ii) From the port to the plant, warehouse or distribution center.

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c. MARKING AND PLACARDING: Each IBC must be marked "DOT-SP 16295" as required by § 172.302(c) and must be placarded with a COMBUSTIBLE placard that meets the size requirements for labels in § 172.407(c). Additionally, IBCs placarded in accordance with this special permit may display the proper shipping name and identification number in accordance with § 172.302(b)(2) in place of the identification number on an orange panel, placard or white square-on-point configuration.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a closed and sealed transport vehicle or closed and sealed freight container covered by this special permit may reoffer for transportation an IBC covered under the terms of this special permit provided:

(i) No modification or change is made to the package;

(ii) The IBC is reoffered for transportation in a closed and sealed transport vehicle or closed and sealed freight container; and

(iii) The closed and sealed transport vehicle or closed and sealed freight container is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MN/TG